

In The Supreme Court of Bangladesh

High Court Division

(Criminal Appellate Jurisdiction)

Present:

Mr. Justice Md. Shohrwardi

Criminal Appeal No. 13584 of 2018

Sree Rajesh Puddar and another

-Vs-

The State and another

Mr. Md. Aminul Islam, Advocate with

Mr. Md. Shariful Haque, Advocate

.... For the convict-appellants

Mr. Sheen Ahmed, Advocate

.....For the respondent No. 2 (ACC)

Mr. Md. Monirul Islam, DAG with

M/s.Anjuman Ara Begum, AAG with

M/s. Kazi Shamsun Nahar, AAG with

Mr. Md. Shamim Khan, AAG

..... For the State

**Heard on 24.01.2023, 07.02.2023, 13.02.23, 19.02.2023,
27.02.2023, 05.03.2023, 27.03.2023 and 28.03.2023.**

Judgment delivered on 04.04.2023

This appeal has been preferred under Section 12 of the মানিলভারিং প্রতিরোধ আইন, ২০০২ challenging the legality of the judgment and order of conviction and sentence dated 28.11.2018 passed by the Special Judge, Dinajpur in Special Case No. 3 of 2009 arising out of Hakimpur Police Station Case No. 5 dated 08.04.2005 corresponding G.R. No. 40 of 2005 convicting the appellants under Section 13(1) of the মানিলভারিং প্রতিরোধ আইন, ২০০২ and sentencing them under section 13(2) of the said Ain to suffer simple imprisonment for 03 (three) years and 06 (six) months and to pay a fine of Tk. 23,12,546.

The prosecution case, in a nutshell, is that Md. Sadrul Alam, Superintendent, Hili Customs Station, Hakimpur, Dinajpur lodged FIR on 08.04.2005 at 8:30 pm with the Hakimpur Thana alleging, inter alia, that the accused No. 1 M/S Shuvon & Brothers and the accused No. 2 MN International jointly imported 200 metric tons of Indian wheat on 17.02.2005 at 3.30 am by fake L.C and submitted the bill of entry being Nos. B/E No. 3176 dated 17.02.2005 and B/E No. 3230 dated 19.02.2005. After submitting the documents, the customs officer of the Hili Customs Station verified the bill of entry, LC and other documents and at the time of verification, it was suspected that the L.C. was forged. Thereafter, a letter was written to the

concerned branch of the Bank to determine the genuineness of the L.C. No. 120305010278 dated 05.02.2005. After that, the Social Investment Bank Limited, Agrabad Branch, Chattogram Commercial Area by letter dated 28.02.2005 informed that the said L.C. was not open from the said bank for which it was found that the said L.C. was forged. Therefore, the said business concern/persons committed the offence of misappropriation by fraudulently creating forged documents.

The Officer-in-Charge, Hakimpur Police Station was appointed as the investigating officer who after completing the investigation submitted 02 charge sheets i.e. 1. charge sheet No. 97 dated 30.08.2005 under sections 406/420/465/467/468/471 and 34 of the Penal Code, 1860 and 2. charge sheet No. 97(Ka) dated 31.08.2005 under Section 13 of the মানিলভারিং প্রতিরোধ আইন, ২০০২ against the accused Mustak Ahmed Mithu. Thereafter, the learned Magistrate by order dated 23.10.2005 issued a show cause notice upon the investigating officer to show cause as to why he investigated the case and whether he had taken any sanction from the Bangladesh Bank but no explanation was given by the investigating officer as regards the issuance of the said show cause notice.

Thereafter, the learned Magistrate by order dated 18.01.2007 sent the records of charge sheet No. 97 (Ka) under section 13 of the মানিলভারিং প্রতিরোধ আইন, ২০০২ to the Sessions Judge, Dinajpur for trial. After that, the case record was sent back to the learned Magistrate on the ground of the non-availability of the statement of the witnesses recorded under section 161 of the Code of Criminal Procedure, 1898 and subsequently, by order dated 02.12.2007 the case record was again sent to the Sessions Judge, Dinajpur for trial and the case was registered as Special Case No. 3 of 2009.

Afterthat, the Senior Special Judge, Dinajpur by order dated 21.04.2009 sent the case to the Anti-Corruption Commission for holding further investigation of the case under the Anti-Corruption Commission Act, 2004 and PW. 14 Md. Shafiqur Rahman Bhaiyan, Deputy Director of the Anti-Corruption Commission after completing the investigation submitted charge sheet on 04.01.2011 against the appellants under section 13 of the মানিলভারিং প্রতিরোধ আইন, ২০০২. The Senior Special Judge, Dinajpur took cognizance of the offence under section 13 of the মানিলভারিং প্রতিরোধ আইন, ২০০২ against the appellants based on the charge sheet dated 04.01.2011 submitted by P.W. 16 Md. Shafiqur Rahman and thereafter sent the case records to the Special Judge, Dinajpur for trial.

During the trial, the charge was framed under section 13 of the মানিলভারিং প্রতিরোধ আইন, ২০০২ against the accused persons which was read over to them and they pleaded not guilty to the charge. The prosecution examined 16 witnesses to prove the charge against the appellants. After examination of the prosecution witnesses, the appellants were examined under section 342 of the Code of Criminal Procedure, 1898 and accused Sree Rajesh Puddar

declined to adduce any witness. The accused Mustak Ahmed Mithu examined 1 D.W.

P .W. 1 Md. Zahangir Khaled is the Executive Vice President of Social Investment Bank, Agrabad Branch, Chattagram. He stated that the Social Investment Bank Limited is renamed as Islami Bank Limited. At the time of occurrence, he was discharging his duty as Manager of the Bank. The Anti-Corruption Commission by letter dated 22.01.2009 requested him to give information as regards the LC of Hakimpur P.S. Case No. 5 and thereafter, by letter dated 21.12.2009 he informed that the LC was not issued from the Social Investment Bank Limited. He proved the letter dated 21.12.2009 as exhibit-1 and his signature as exhibit-1/1. During cross-examination, he stated that he had no personal knowledge about the LC. On behalf of the accused Mostak, the defence declined to cross-examine the P.W. 1.

P.W. 2 Raju Mohammad Sarwar Hossain is the Assistant Inspector of the Anti-Corruption Commission, Rajshahi. He stated that on 16.11.2009, he was posted at the Anti-Corruption Commission, Dinajpur as Assistant Inspector and on that day, he along with Md. Motiur Rahman, Deputy Director of the Anti-Corruption Commission, went to Hilly Customs Station at 11:10 a.m. and seized documents from the customs office and he signed the seizure list. He proved the seizure list as exhibit-2 and his signature as exhibit-2/1. During cross-examination, he stated that he did not know the documents seized from the customs office.

P.W. 3 Constable Md. Shah Alam stated that at the time of occurrence, he was posted at the Anti-Corruption Commission, Dinajpur and at that time, he verified the address of M/S Shuvon & Brothers, 30 Bayzidbostami Residential Area, Chattagram and found that Dr. Mozammel resided there after retirement from service in 1989. He is the owner of that house and informed that M/S Shuvon & Brothers was never his tenant. He proved the report as exhibit-3 and his signature as exhibit-3/1. During cross-examination, he stated that as per instruction of the investigating officer, he submitted a report but he did not record his statement. He affirmed that no instruction was given to inquire whether there was any business enterprise in the name of M/S Shuvon & Brothers at Chattagram.

P.W. 4 Md. Sadrul Alam stated that at the time of occurrence, he was discharging his duty as Superintendent of Customs Station, Hili, Dinajpur in 2005. At that time, 200 metric tons of wheat was imported from India by forging LC. After examination of records, it was found on 28.05.2005 that the LC was forged from the Social Investment Bank Limited, Chattagram Branch. Thereafter, he lodged the FIR. The LC was opened in the name of the MN Enterprise. He proved the FIR as exhibit-4 and his signature as exhibit-4/1. As per the certificate issued by the Social Investment Bank Limited, Chattagram LC No. 120305020278 was not opened from the said branch. During cross-examination on behalf of accused Sree Rajesh Puddar, he stated that he was not aware whether he came to know about the forged LC before entering the

goods in Bangladesh. In the FIR, the date of occurrence is mentioned as 17.02.2005 and the FIR was lodged on 08.05.2005. He has no personal knowledge as regards the letter issued from the bank and no approval was taken from the Bangladesh Bank before lodging the FIR. He asserted that there is no provision in law to examine the genuineness of the LC before the release of the goods. During cross-examination, on behalf of accused Mustak Ahmed Mithu, he stated that FIR was lodged against M/S Shuvon & Brothers Limited, and the C&F agent MN International deposited the customs duty on behalf of the importer and the C&F agent has no connection with the import of the goods and there is no allegation against the C&F agent. The importer opens the LC and the C&F agent has no connection as regards the opening of LC. The customs authority has to examine the genuineness of the LC. While the C&F agent submits any LC on behalf of the importer, the customs authority examines the LC. After depositing the customs duty, the LC and the bill of entry are usually examined and the goods are kept in the godown of the importer. On 18.02.2005, he came to know about the forged LC and lodged the FIR on the same day. Three separate cases were lodged as regards the forgery of three LCs and the C&F agent was made accused No. 2 in those cases. MN International did not get any permission from the Bangladesh Bank. At the time of lodging the FIR, LC and bill of entry were not submitted, and no reason has been assigned in the FIR as regards the delay in lodging the FIR.

P.W. 5 Saidul Alam is a retired Assistant Revenue Officer, at Customs House, Dhaka. He stated that on 16.11.2009, he was posted at Hilly Customs Station as Inspector and, on that day, the documents relating to the case were seized by Motiur Rahman, Deputy Director of Anti-Corruption Commission from the Head Assistant Broja Kumar, Hili Customs Station. He proved his signature on the seizure list as exhibit-2/2. During cross-examination on behalf of the accused Sree Rajesh Puddar, he stated that initially, the importer submits the LC to the C&F agent and thereafter, the C&F agent presents the LC, bill of entry and other documents to the customs authority and the customs authority release the goods after payment of the customs duty. During cross-examination on behalf of the accused Mustak Ahmed Mithu, he stated that after the occurrence while the documents were seized, he was discharging his duty as Inspector. The documents regarding import were submitted to him. He affirmed that after examination, if the documents are found in form, the goods are usually released and if there is any doubt, the goods would not be released. He affirmed that the LC is open by the importer and after payment of the customs duty, the importer received the goods. After the release of the goods, the customs authority had no duty to supervise and he had no personal knowledge about the occurrence.

P.W. 6 Broja Kumar Roy is the Assistant Customs Officer, Chattagram. He stated that while he was discharging his duty as Head Assistant on 16.12.2009 at 10:10 am Md. Motiur Rahman, Deputy Director of the Anti-Corruption Commission, seized the documents from him and thereafter he signed the seizure list. He proved his signature on the seizure list

as exhibit-2/3. During cross-examination, he stated that he did not know who submitted the bill of entry. He affirmed that after examination of the records, the goods were released.

P.W. 7 Constable No. 246 Md. Asadur Rahman Chowdhury stated that on 08.11.2009 at noon Md. Motiur Rahman, Deputy Director of Anti Corruption Commission seized the documents and at that time he was present there and signed the seizure list. He proved his signature on the seizure list as exhibit-5/1. During cross-examination, he stated that at the time of occurrence, he was not posted at Hili Customs Station. He signed the seizure list at the office of the Anti-Corruption Commission, Dinajpur which was submitted by Oshith Kumar Roy (P.W.14). He could not say which documents were seized.

P.W. 8 Tarapada Das is the Officer of Customs, Excise and VAT, Hili, Dinajpur. He stated that he issued a letter on 25.02.2005 to the Social Investment Bank regarding the genuineness of LC No. 120305020278. Thereafter, the said bank by letter dated 28.2.2005 informed that none of the Bank officials signed the LC. After that, Md. Sadrul Alam lodged the FIR. He identified his signature on the photocopy of the letter dated 28.02.2005. He identified the letter dated 28.02.2005 written by the Bank. During cross-examination on behalf of the accused Mustak Ahmed Mithu, he stated that at the time of occurrence, he was posted at Customs Station, Hili, Dinajpur and the godown was situated 200/300 yards away from the Customs Office. After examination of the records, he issued the release letter. No step was taken immediately when it appeared that the documents were forged and the goods were not seized. He affirmed that the LC was submitted on 17.02.2005 and the letter was written on 25.02.2005 after 8 days and no explanation has been given in the FIR as regards the delay of 08 days. The customs department examines the genuineness of the LC. During cross-examination on behalf of Sree Rajesh Puddar, he stated that Mustak Ahmed Mithu did not submit the bill of entry and LC. The four forged LCs were possibly submitted to Harun-or-Rashid. He affirmed that he could not remember whether the LC was verified by him. He affirmed that after examination of the LC, if it is found in form, the goods are allowed to enter into Bangladesh and the goods were released from the godown.

P.W. 9 Md. Meherul Islam, Assistant Revenue Officer, Customs, Excise and VAT, Dhaka was tendered.

P.W. 10 Nasir Uddin Chowdhury is the Assistant Vice-President of Social Investment Bank Limited, Agrabad, Chattagram. He stated that on 16.03.2010 he was the AVP of the said bank. On 05.02.2005 at 10.30 am Shafiqur Rahman Bhuiyan, Deputy Director of the Anti-Corruption Commission came to the bank and he did not find the LC No. 120305020278 in the office of the concerned branch of the said Bank. On 16.03.2010, the Investigating Officer seized Register No. 5, Page 10 and L.C opening Register pages No. 46 to 48 between 08.01.2005 to 29.03.2005. He proved the seizure list as exhibit-6 and his signature as exhibit-6/1. During cross-examination, he

stated that the importer opened the LC and till the arrival of the goods, the C&F agent had no responsibility. During cross-examination, on behalf of the accused Sree Rajesh Puddar, he stated that on 05.02.2005, he was posted at Khatungonj. There is no entry of any L.C. on 05.02.2005 in the register of LC in the name of M/s. Shuvan and Brothers.

P.W. 11 Md. Furkanulla stated that on 16.03.2010 he was posted as Manager of Social Investment Bank Limited, Khatungonj Branch. On 16.03.2010 Md. Shafiqur Rahman, Officer of the Anti-Corruption Commission visited the Social Investment Bank Limited and wanted to know about the LC and Burhan Uddin, concerned officer, produced the LC register as per his instruction. The LC Nos. 2005 and 278 were not found in the register and those were forged. The officer of the Anti-Corruption Commission seized the register on 05.02.2005 and he signed the seizure list. He proved his signature on the seizure list as exhibit-2/2. He proved his signature in the Zimanama (bond) as exhibit 7/2. The defence declined to cross-examine P.W. 11.

P.W. 12 Borhan Uddin stated that on 06.03.2005 he was discharging his duty as Senior Executive Officer of the Bank at Khatungonj and at that time, Md. Shafiqur Rahman, Deputy Director, Anti-Corruption Commission seized the documents. The investigating officer seized the LC register No. 5 and Back to Back LC register, page Nos. 46-48 on 16.03.2010. He proved his signature on the Zimmanama(bond) as exhibit-7 and his signature as exhibit 7/1. He stated that on 05.02.2005 no LC was opened. The documents were seized on 16.03.2010.

P.W. 13 Biplob Kumar Chowdhury stated that he was the employee of the accused Sree Rajesh Puddar from 2000 to 2005. The accused Sree Rahesh Puddar opened an account in the Sonali Bank Limited in his name and he did not make any transaction personally. The accused Sree Rajesh Puddar used to make the transaction and the chequebook was lying with him. He did not open the account and Rajesh Puddar used to operate the account as and when necessary. The accused Sree Rajesh Puddar imported the goods through his account and subsequently, it was detected that the L.C. was forged. He is not aware about the forged LC and the investigating officer interrogated him. During cross-examination, on behalf of accused Sree Rajesh Puddar, he stated that he read up to class seven or eight. Sree Rajesh Puddar was the proprietor of Amon Trading. He affirmed that he is the proprietor of BK Trader and accused Sree Rajesh Puddar use to operating the same. He denied the suggestion that the accused did not open any account in his name and he also did not operate the bank account. He also denied the suggestion that he opened the account and operated the account. He affirmed that he did not know the manner of opening LC. He denied the suggestion that he had enmity with the accused for which he falsely deposed against him as a fake employee. During cross-examination, on behalf of accused Mustak Ahmed Mithu, he stated that he did not open the firm BK Traders. The accused Mustak Ahmed Mithu did not cooperate to open the account and tread license. The accused Mustak

Ahmed Mithu paid the customs duty and he has no responsibility. He affirmed that customs duty was paid from his account and after payment of the customs duty, the goods entered into the godown of the importer and Sree Rajesh Puddar is the owner of the godown.

P.W. 14 Ashith Sarkar stated that on 08.11.2009 he was discharging his duty as the Operator of Customs Department, Dinajpur and on that day, Deputy Director Md. Motiur Rahman of ACC seized documents from him. He signed the seizure list. He proved the seizure list as exhibit-5 and his signature as exhibit-5/1. He submitted the documents to the investigating officer but he could not recognize which documents were submitted to the investigating officer and he was not aware which was written in the documents.

P.W. 15 Md. Motiur Rahaman is the Deputy Director of the Anti-Corruption Commission. He stated that on 08.11.2009 he was discharging his duty at the Office of Anti-Corruption Commission, Dinajpur and he is the Investigating Officer. During the investigation, on 08.11.2009 he seized 32 items of documents from Ashit Sarker and prepared the seizure list. He proved the seizure list as exhibit-5 and his signature on the seizure list as exhibit-5/1. He proved the bill of entry No. 3176 dated 17.02.2005 and the photocopy of Zimmanama as exhibit-8 and form 6(Ka) as exhibit-9. He proved the application filed by MN International for payment of the advance VAT as exhibit 11. He proved the authorization copy of the M/S Shuvon & Brothers as exhibit-12. He proved the application for opening LC No. 26133 Social Investment Bank Limited, Chattagram as exhibit-15, the proforma invoice (photocopy) as exhibit-16, the certificate of the Social Investment Bank Limited as exhibit-17, bill of export No. 550 dated 10.02.2005 as exhibit-18, invoice number 334 10.02.2005 as exhibit-19, Chalan Nos. 32 and 33 dated 13.02.2005 as exhibits- 20 and 20(Ka), export manifesto 540 dated 10.02.2005 as exhibit-21, bill of entry Nos. 32-30 dated 14.02.2005 as exhibit-22. He stated that on 16.11.2009, he seized the documents from Hili Customs Station, Hakimpur, Dinajpur and he proved the seizure list as exhibit-21 and his signature as exhibit-21/1. He denied the suggestion that the accused did not pay the customs duty in cash. Rather he paid the customs duty through the bank account. He affirmed that he could not verify the genuineness of the seized documents and he was transferred before verifying the genuineness of the seized documents. He denied the suggestion that he deposed falsely. During the cross-examination on behalf of Rajesh Puddar, he affirmed that the Anti Corruption Commission lodged the FIR under sections 406/467/468/471/ and 34 of the Penal Code, 1860 and name of the Rajesh Puddar was not mentioned in the FIR as accused. He denied the suggestion that without any permission from Bangladesh Bank, no one is empowered to lodge the case under the মানিলাভারিং প্রতিরোধ আইন, ২০০২. He affirmed that the Bangladesh Bank or the Anti Corruption Commission did not lodge the FIR. He could not remember whether he seized any documents signed by Sree Rajesh Puddar.

P.W. 16 Md. Shafiqur Rahman Bhuiyan is the Deputy Director of the Anti-Corruption Commission. He stated that between 28.02.2010 to 04.01.2011, he was posted at Dinajpur and at that time, he was appointed as the second investigating officer. He stated that on 16.03.2010, he seized the documents from the Social Investment Bank Limited, Khatunganj Branch, Chattagram. i.e. LC open register No. 5 (2). LC opened register (back to back LC) and prepared the seizure list. He proved his signature on the seizure list as exhibit-6/2. In the register, the concerned LC was not found and the LC is forged. On 16.03.2010, he recorded the statement of the Manager of SIBL, Khatunganj Branch. During the investigation, he verified the address of M/S Shuvon & Brothers 30, Bayezidbostami Residential Area, Chattagram and it was found that there is no existence of the M/S Shuvon & Brothers in the said address. He also recorded the statement of the Manager of Sonali Bank, Hakimpur Branch, Dinajpur and collected the information as regards payment of the customs duty of the LC which was paid by one Biplob Kumar Chowdhury, son of Gayaram Chowdhury, Proprietor of M/S Aman Enterprise. The customs duty was paid from the account No. 1234/12. He proved the letter of the bank dated 02.06.2010 as exhibit 13. He recorded the statement of Biplob Kumar Chowdhury who stated that he was the employee of accused Sree Rajesh Puddar. Biplob Kumar Chowdhury is the account holder of Account No. 1234/12. Biplob Kumar Chowdhury stated that the customs duty was paid from his account by accused Sree Rajesh Puddar. Biplob Kumar Chowdhury and Mustak Ahmed Mithu stated that the accused Sree Rajesh Puddar is the owner of Aman Trading. He affirmed that without permission of the customs authority Mustak Ahmed Mithu had withdrawn the wheat and handed it over to the Sree Rajesh Puddar.

He further stated that after getting approval from the Anti-Corruption Commission on 27.12.2010 he submitted charge sheet against the accused persons. During cross-examination on behalf of Rahesh Potdhar, he stated that the name of the accused Sree Rajesh Puddar was not mentioned in the FIR recorded under section 406/420/465/467/468/471 of the Penal Code. Initially, the police submitted a charge sheet under the মানিলাভারিং প্রতিরোধ আইন, ২০০২ and subsequently the Court sent the case to the Anti-Corruption Commission for investigation. He stated that he did not examine the documents and cheque of the account No. 1234/12. He also did not verify who signed the cheque. He did not get any permission for investigation from Bangladesh Bank. The Anti-Corruption Commission instructed him to investigate the case. Bangladesh Bank has approved but there is no memo with the record. He denied the suggestion that Biplob Kumar Chowdhury was not an employee of Sree Rajesh Puddar and Sree Rajesh Puddar also did not open the account in the name of Biplob Kumar Chowdhury. He affirmed that Biplob Kumar Chowdhury is the account holder of account No. 1234/12. The Customs duty was paid from the account of Biplob Kumar Chowdhury, Proprietor of Amon Trading which is mentioned in the charge sheet. He denied the suggestion that Sree Rajesh Puddar did not open the forged account and that he also did not import and release the wheat. He denied the suggestion that Sree Rajesh Puddar has no

connection with the forged LC. He affirmed that he did not find any evidence as regards the involvement of Sree Rajesh Puddar in any documents but the witnesses stated that he is involved with the forgery. He denied the suggestion that he submitted charge sheet falsely. During the cross-examination on behalf of Mustak Ahmed Mithu, he stated that in the charge sheet, the importer and the C&F agent were implicated as accused and the importer completed all the works with regards to the opening of LC and no involvement of the accused Mustak Ahmed Mithu was found in the records at the time of opening the LC, The duty of the C&F agent is to pay the customs duty on behalf of the importer and the C&F agent present the documents on behalf of the importer to the customs authority and the customs authority has to examine the documents submitted by the C&F agent. If the documents are found in form, the customs authority releases the goods and after 8 days the documents are sent to the Bank. He did not investigate as regards the delay. He did not implicate the account holder from whose account, the customs duty was paid. The customs authority did not make any allegation to the effect that the accused Mustak Ahmed Mithu delivered the goods without permission of the customs authority. He denied the suggestion that accused Mustak Ahmed Mithu was discharging his official duty on behalf of the importer and he also denied the suggestion that the accused Mustak Ahmed Mithu did not assist the accused Sree Rajesh Puddar, He affirmed that none of the witnesses stated that the accused Mustak Ahmed Mithu was involved with the occurrence. He denied the suggestion that on presumption, he submitted charge sheet against the accused Mustak Ahmed Mithu without proper investigation.

D.W. 1 Abdul Malek stated that he is an importer. He imports the goods from India through the Hili Land Port. The accused Rejesh Putdar is also an importer and he is known to him. The M/S. Amon Trading is situated near Hili Land Port and his office is also situated there. Rajesh Putdar is the proprietor of Amon Trading. Biplob is an employee of Amon Trading and he is also known to him. The accused Mostaq Ahmed Mithu is a C&F agent and used to pay the customs duty. During cross-examination, on behalf of accused Rajesh Putdar, he stated that he submitted documents to prove that he is an importer but the documents are photocopies. He admitted that he is the proprietor of M/S. Shuvon and Brothers. He could not say the subject matter of the case. Biplob is a resident of Bogura. He denied the suggestion that Biplob was not an employee of Rajesh Putdar and he was an importer. He also admitted that he came today along with accused Mushtaq Ahmed Mithu. He denied the suggestion that he deposed falsely regarding Biplob. During the cross-examination on behalf of the state, he affirmed that the C&F agent pays the customs duty on behalf of the importer and submits it to the authority.

Learned Advocate Mr. Md. Aminul Islam appearing along with the learned Advocate Mr. Md. Shariful Haque on behalf of the appellants submits that the occurrence took place on 17.02.2005 and the FIR was lodged on 08.04.2005 under sections 406/420/465/467/468/471/34 of the Penal Code without permission of the Bangladesh Bank and the name of Rajesh Puddar is

not mentioned in the FIR as accused and the police submitted 02 charge sheets i.e. (1) charge sheet No. 97 dated 31.08.2005 under sections 406/420/465/467/468/471/34 of the Penal Code and (2) charge sheet No. 97(Ka) under section 13 of the মানিলভারিং প্রতিরোধ আইন, ২০০২ only against the accused Mustak Ahmed Mithu. The charge sheets submitted by the police under section 13 of the মানিলভারিং প্রতিরোধ আইন, ২০০২ without permission of the Bangladesh Bank is violative of section 3(Ka) of the মানিলভারিং প্রতিরোধ আইন, ২০০২ and the Senior Special Judge, Dinajpur by order dated 21.04.2009 sent the case for further investigation to be made by the Anti-Corruption Commission violating the provision of section 3(Ka) of the মানিলভারিং প্রতিরোধ আইন, ২০০২. He further submits that the FIR was lodged on 08.04.2005 and because of the provision of section 3Ka of the মানিলভারিং প্রতিরোধ আইন, ২০০২ there is no scope to make further investigation of the case by the Anti Corruption Commission. Therefore, the third charge sheet submitted by the Anti-Corruption Commission is without jurisdiction. He further submits that admittedly no document was proved by the prosecution to connect the Sree Rajesh Puddar with the alleged occurrence. Admittedly the customs duty was paid by P.W. 13 Biplob Kumar Chowdhury and he is not accused in the case who is the importer of the wheat and the evidence of P.W. 13 cannot be relied on by this court to affirm the judgment and order of conviction and sentenced passed by the trial Court. He finally submits that except the oral evidence of P.W. 13, there is no documentary evidence to show that accused Sree Rajesh Puddar is the importer of the wheat allegedly imported by opening the forged LC. He also submits that a separate charge sheet was submitted under sections 406/420/465/467/468/471/34 of the Penal Code for alleged forgery of the LC and without trial of that case no conclusion can be drawn as regards the forgery of the alleged LC and both the case was required to be tried simultaneously by the same court. Therefore, he prayed for setting aside the judgment and order passed by the trial court.

The learned Advocate Mr. Shaheen Ahmed appearing on behalf of respondent No. 2 submits that in exhibits-8 and 22 i.e. 02 bills of entry it has been mentioned that after import, the goods were kept in the godown of the accused Sree Rajesh Puddar and P.W. 13 Biplob Kumar Chowdhury who is the employee of Sree Rajesh Puddar stated that accused Sree Rajesh Puddar used to maintain the account No. 1234/12 maintained with Sonali Bank Limited, Hakimpur Branch for payment of the customs duty imported by Sree Rajesh Puddar. Therefore, it is crystal clear that the accused Sree Rajesh Puddar is the real importer of the goods imported through forged LC which is evidence from the evidence of P.W. 1 and the letter dated 28.04.2005 exhibit-1. He also submits that the accused Mustak Ahmed Mithu and Sree Rajesh Puddar in connivance with each other imported the goods by opening a forged LC. Therefore they committed an offence under section 13 of the মানিলভারিং প্রতিরোধ আইন, ২০০২ and the prosecution proved the charge against them to the hilt beyond all reasonable doubt. He further submits that procedural law is always retrospective unless a different intention is specifically mentioned in the

statute. Therefore, no approval from Bangladesh Bank is necessary for the investigation of the offence under section 13 of the মানিলাভারিং প্রতিরোধ আইন, ২০০২. In support of his submission he relied on a decision made in the case of Tarek Rahman Vs. the Anti-Corruption Commission reported in 63 DLR(AD) 18.

I have considered the submission of the learned Advocate of both parties, perused the evidence, judgment and order passed by the trial court and records of the case.

The issue involves in the instant case whether the prosecution proved the charge against the accused persons beyond all reasonable doubt by adducing legal evidence.

On perusal of the records, it appears that the occurrence took place on 17.02.2005 at 3:30 pm which is the date of import of the 200 metric tons of wheat and the FIR was lodged on 08.04.2005 and customs duty was paid on 13.02.2005 and 19.03.2005 by P.W. 13 Biplob Kumar Chowdhury from his Account No. 1234/12 maintained with Sonali Bank Limited, Hakimpur Branch, Dinajpur and after submission of L.C and the bill of entry to the customs authority, the documents were examined by the customs authority and after payment of the customs duty the goods were released from the godown. The appellants are not named in the FIR. In charge sheets No. 97 and 97 Ka, Sree Rajesh Puddar was not implicated as accused which was submitted only against Mustak Ahmed Mithu. During cross-examination, P.W. 1 stated that he had no personal knowledge about the alleged LC. P.W. 5 stated that after examination of the LC, the Bill of Entry and the records, the goods were released. It is an admitted fact that the customs duty was paid by P.W. 13 Biplob Kumar Chowdhury through his account No. 1234/12 maintained in the name of Aman Trading.

In the FIR it has been alleged that M/S Shuvon and Brothers is the importer. During cross examination, DW. 1 Md. Abdul Malek admitted that he is the proprietor of M/S Shuvon & Brothers. In the impugned judgment and order, it has been mentioned that admittedly Biplob Kumar Chowdhury was involved with the alleged occurrence as the customs duty was paid from his account but he was not implicated as accused in the case which is not permissible in law. The trial court further held that the investigating officer has decided not to submit the charge sheet against the person against whom the prima facie case was proved. P.W. 13 Biplob Kumar Chowdhury stated that the customs duty for the imported goods was paid from his account but he was not implicated as accused in the case. Therefore, the evidence of P.W. 13 cannot be relied on by this court to convict the accused Sree Rajesh Puddar. Because of the above evidence, observation and findings, I am of the view that the prosecution could not adduce any documentary evidence to connect accused Sree Rajesh Puddar in the alleged forgery of the LC.

It is found that the accused Mustak Ahmed Mithu is the C&F agent. It is admitted by the prosecution that the C&F agent only submits the documents

on behalf of the importer after payment of the customs duty to release the imported goods. It is evident that for alleged forgery of the LC, charge sheet No. 97 dated 30.08.2005 under sections 406/420/465/468/471/34 of the Penal Code, 1860 was submitted against the accused Mustak Ahmed Mithu and in that case accused Sree Rajesh Puddar was not an accused which clearly shows that the accused Sree Rajesh Puddar is not involved with the alleged forgery of the LC by which 200 metric tons of wheat were imported from India. Unless the prosecution proved the forgery of the LC against the accused, the allegation under section 13 of the মানিলাভারিং প্রতিরোধ আইন, ২০০২ cannot be proved. In the FIR it has been alleged that M/S Shuvon and Brothers is the importer. DW.1 Abdul Malek stated that he is the proprietor of M/S Shuvon and Brothers which is not disputed by the prosecution. No document was proved by the prosecution to show that the accused Rajesh Puddar is the proprietor of M/S Shuvon and Brothers. It is found that the accused Mostaq Ahmed Mithu is the proprietor of M.N. International which is the C&F agent of M/S Shuvon and Brother. The C&F agent only presents the import documents to the customs authority. It is only the importer who is responsible for forging the L.C. and the Bill of Entry. The prosecution did not send the application filed for opening the LC (exhibit-15) to ascertain the importer of 200 metric tons of wheat. The evidence of a witness/person who ought to have been included in the charge sheet as accused cannot be relied on by this Court to arrive at a conclusion as regards the guilt of the other accused. The prosecution mala fide cited P.W. 13 Biplob Kumar Chowdhury as a witness in the charge sheet.

Therefore, I am of the view that the prosecution failed to prove the charge against the appellants beyond all reasonable doubt.

In the result, the appeal is allowed.

The impugned judgment and order of conviction and sentence passed by the trial court is hereby set aside.

The appellants are acquitted from the charge levelled against them.

Send down the lower Court's record at once.

